

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 21, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**GRANT ANDREW ANDERSON vs. FORD MOTOR COMPANY; ET AL.
Case No. CU25-08144**

FORD FAIRFIELD's Motion to Compel Arbitration

TENTATIVE RULING

Defendant PRICE-SIMMS FORD LLC - FORD LINCOLN FAIRFIELD ("FORD FAIRFIELD") moves to compel arbitration of Plaintiff GRANT ANDREW ANDERSON's complaint alleging violations of the Song-Beverly Consumer Warranty Act and breach of the implied warranty of merchantability. Plaintiff's complaint alleges that his 2020 Ford Expedition (the "Vehicle") has a transmission defect FORD FAIRFIELD and Defendant FORD MOTOR COMPANY have failed to conform to warranty.

Timeliness of Opposition. Opposition to a motion is due nine court days before the hearing date. (Code Civ. Proc., § 1005, subd. (b).) In this case Plaintiff's opposition was due July 8, 2026, the hearing being on July 21, 2026. Opposition was not filed until July 13, 2026, the day before FORD FAIRFIELD's reply was due. Plaintiff's opposition was significantly late, to FORD FAIRFIELD's prejudice. The court exercises its discretion to disregard Plaintiff's untimely filed opposition.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v.*

Applied Underwriters Captive Risk Assurance Co. (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*.) Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

FORD FAIRFIELD presents evidence that an arbitration agreement exists between it and Plaintiff as part of the retail sales installment contract by which Plaintiff obtained the Vehicle from FORD FAIRFIELD. (Declaration of Karyn Ihara in Support of Motion to Compel Arbitration at ¶ 2, Exhibit 1.) The agreement covers “[a]ny claim or dispute...between you [Plaintiffs] and us [FORD FAIRFIELD]...which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship.” (*Ibid.*)

The arbitration agreement covers Plaintiff’s causes of action against FORD FAIRFIELD. The lemon law claims Plaintiff asserts arise from the purchase and condition of the Vehicle. Plaintiff does not argue against the existence or application of the arbitration agreement, even in his untimely opposition.

Conclusion. FORD FAIRFIELD’s functionally unopposed motion to compel arbitration is granted. Plaintiff’s claims against FORD FAIRFIELD are ordered stayed pending completion of arbitration.

**MARSHALL TUBBS vs. COUNTY OF SOLANO GENERAL SERVICES
DEPARTMENT; ET AL.
Case No. CU25-09311**

Demurrer by COUNTY OF SOLANO GENERAL SERVICES DEPARTMENT to
Complaint

TENTATIVE RULING

In general, as a prerequisite to the filing of FEHA-based causes of action, the plaintiff must first file a charge with the DFEH (California Dept. of Fair Employment and Housing) or in more recent times the California Civil Rights Department (CRD), and then upon issuance of a right-to-sue letter, file within the applicable time a civil complaint alleging those FEHA-based causes of action. Government Code §12960; *Kim v. Konad USA Distribution, Inc.* (2014) 226 Cal.App.4th 1336, 1345 [“Before filing a civil action alleging FEHA violations, an employee must exhaust his or her administrative remedies with DFEH . . . Exhaustion includes the timely filing of administrative complaints addressing the claims and parties at issue, as well as the procurement of right-to-sue letters”]; *Blum v. Superior Court* (2006) 141 Cal.App.4th 418,